

Government Response to Record Motions

Position on correction

On February 28, 2025, the institutional respondent answers both pending record motions. It agrees that P-7 was admitted during the merits hearing and omitted from the February 18 transmission. The hearing transcript, exhibit receipt, immigration judge decision, and Board order all identify the declaration as agency evidence. The stored object contains eighteen pages and bears the SHA-256 stated in A.R.M.'s correction motion. The respondent has compared that control with the agency file and does not object to restoration of the unchanged object at AR33–AR50.

Agreement is limited to record composition. The respondent does not concede the declaration's truth, evidentiary weight, or effect on the CAT probability analysis. It also does not agree that the omission itself affected the agency's decision, because the agency had the declaration when deciding the case. The proper remedy is correction of the court transmission while preserving the original export and documenting the reason for the discrepancy.

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Position on supplementation

The respondent opposes adding T.R.'s February 20 declaration to the administrative record. The document did not exist when the immigration judge closed evidence or when the Board entered its January 13 order. No agency adjudicator admitted it, tested its foundation, evaluated credibility, or relied on it. Section 1252(b)(4)(A) confines the pending petition to the record on which the removal order was based.

The respondent also opposes treating the supplementation motion as proof of changed risk. Filing a declaration in the court of appeals does not establish the asserted residence search or its connection to any feared actor. The court should deny administrative-record treatment and leave any separate agency procedure to the law governing such a request. The proffer may remain on the appellate docket as the object of the motion, but merits briefs should not cite it as agency evidence.

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Proposed Rule 16(b) stipulation

The parties can resolve the P-7 omission by stipulating that the records office restore the unchanged eighteen-page object at AR33–AR50, file an itemized corrected index, preserve the February 18 transmission, and exclude the post-order proffer from the administrative set. The stipulation should identify the docket, parties, object placement, Rule 16(b) authority, and signatures in controlled text so the correction can be verified without ambiguity.

The respondent proposes that a second clerk compare all admitted-exhibit receipt rows with the corrected index and confirm the P-7 digest. The file-selection audit should be retained because it explains how a stale status field excluded an admitted object without suggesting deletion or byte replacement. No stipulation language should address the truth of P-7, the CAT merits, or the legal availability of another proceeding concerning later evidence.

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No merits concession

The respondent's agreement about omission does not accept A.R.M.'s aggregate-risk theory. The respondent continues to maintain that the agency considered Unit Four, Harbor League, registry evidence, country conditions, expert limits, relocation, and formal safeguards adequately. It also disputes that complaint routing and the absence of an independent interview compel a finding of official acquiescence. Those questions belong in merits briefing after the record is fixed.

Likewise, opposition to supplementation does not establish that T.R.'s account is false. The respondent's position is that the account cannot be used as administrative-record evidence in review of the January 13 order. Separating procedural status from factual truth allows the court to grant correction, deny supplementation, and later decide whether the agency's explanation on the proper record permits review or requires remand.

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Requested rulings

The respondent asks the court to grant the motion to correct the record, approve the parties' forthcoming Rule 16(b) stipulation, and direct an itemized corrected certification. It asks the court to deny the motion to supplement and state that the February 20 declaration is not part of the administrative record. The two rulings should be entered separately so neither disposition is mistaken for the other.

After the correction is certified, the respondent requests a briefing order fixing dates for petitioner's opening brief, the respondent's principal brief, and any reply. Merits briefing should use the continuous AR citations supplied by the corrected index and should cite PA pages only for appellate procedural events. The respondent certifies service of this response and preserves all merits arguments not necessary to the record rulings requested here.